Daler Singh vs State Of Nct Of Delhi And Anr. on 23 October, 2003

Equivalent citations: 2004(72)DRJ465

JUDGMENT

S.K. Agarwal, J.

1. By this petition under Section 438, Cr.P.C. petitioner is seeking pre-arrest bail in case FIR No. 498/2003 registered under Sections 406/420/120-B, IPC at P.S. Patiala Sadar, Punjab.

2. On 19.9.2003, above case was registered on the complaint of one Bakshish Singh resident of village Balbera, Distt. Patiala, Punjab, alleging that he wanted to get a visa for going to Canada; and expressed his desire to Surinder Singh, whom he knew from before, who arranged a meeting of the complainant with Shamsher Singh, Daler Singh (petitioner), Tejinder Singh and Harchand Singh. They demanded Rs. 15.0 lacs for arranging visa for Canada and the deal was settled for Rs. 12.0 lacs. The complainant gave Rs. 2.0 lacs and his passport on 8.5.2003 to said four persons (except petitioner) at Patiala and remaining Rs. 10.0 lacs was agreed to be paid after the visa was granted. After some time the complainant was informed that visa has been granted from 2.6.2003 to 1.12.2003, and he was made to talk to the petitioner at Delhi, who also confirmed that visa has been granted and promised to send photocopy of the same within two days; on 4.7.2003 Shamsher Singh, Tejinder Singh and Surinder Singh contacted the complainant at his village, gave him photocopy of the visa for Canada, and asked for remaining amount of Rs. 10.0 lacs. The complainant paid Rs. 10.0 lacs to them and he was assured that passport would be returned within two-three days. However, despite requests passport of the complainant was not returned to him. On 27.7.2003, he was informed that the passport was with the petitioner, who was in Delhi; and the petitioner wanted to talk with him. The complainant Along with Jaswinder Singh (witness) Shamsher Singh, Tejinder Singh, Harchand Singh and Surinder Singh met the petitioner at Delhi; petitioner assured the complainant that the work has been done and that he could take the pass-port only after giving another sum of Rs. 5.0 lac; on being asked why additional amount of was being demanded; complainant was told that the pass-port would not be given back, without payment of Rs. 5.0 lacs. Surinder Singh, who was a mediator tried to persuade the complainant to arrange for another sum of Rs. 2 to 3 lacs to get the passport. On 12.8.2003, the complainant came to Delhi with Bhupinder Singh (witness) and met the petitioner and Shamsher Singh and paid Rs. 1.0 lac. They did not give back passport, misbehaved with the complainant and threatened to kill him. It is alleged that accused persons were extorting money and black-mailing the complainant, and that he has been cheated and that these persons have committed similar fraud with several other persons, including one Jasvinder Singh.

3. During investigations Police arrested (Shamsher Singh), brother of the petitioner; several incriminating documents were allegedly recovered. The petitioner could not be arrested and warrants for his arrest were issued by the Chief Judicial Magistrate, Patiala on 15.10.2003. The petitioner's application for anticipatory bail was dismissed by learned Additional Sessions Judge, Delhi on 13.10.2003. It is alleged that the State of Punjab was not made as a party and that petitioner did not join investigations but appeared on NDTV channel on 14.10.2003 and gave a interview commenting upon this case. On 21.10.2003 in the course of hearing, learned APP for State had argued that after registration of the above case more than 30 complaints have been received with similar allegations. State was directed to file an affidavit in this regard. Paras 2 to 4 of this affidavit read as under:-

> 1. "That after registration of the FIR No. 498 dated 19.9.2003 at Police Station Sadar, Patiala (Punjab) under Sections 406, 420 read with 120-B IPC, various complaints started pouring in and so far about 31 complaints have been received against the petitioner, his family members and other co-accused, wherein similar allegations have been leveled against them.
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> 2. That the breakup of these complaints received from various Districts is given hereunder:-
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>  (i) Gurdaspur          3 Nos.
> (ii) Patiala           21 Nos.
> (iii) Fatehgarh Saheb   5 Nos.
> (iv) Kapurthala         2 Nos.
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> 3. That many complainants from Himachal Pradesh, Haryana and Chandigarh (other than these 31 complainants) approached Patiala Police, but they were advised to approach the competent authorities in their respective states."
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> 4. Petitioner has filed reply affidavit Along with some newspaper cuttings, inter alia stating that he had already made complaint against the Patiala Police, denying the allegations and submitting that he had lodged complaints with the senior police officers as also the Home Minister against the Patiala Police. He gave interview on the NDTV on 14.10.2003 to explain his conduct.
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> 5. Sh. R.K. Jain, learned senior counsel appearing for the petitioner argued that petitioner is well known Punjabi pop singer and has earned reputation over the years in India and abroad. He was conferred "Pride of India" and the "Best Artist" awards of the year; he has clean antecedents and fixed roots in the society. Learned counsel referring to some press cuttings and the letter dated 2.10.2002 argued that petitioner has already severed relationship with his brother Shamsher Singh. It is argued that petitioner is a resident of Delhi and apprehends his arrest in Delhi; allegations against him are false and without prejudice to his rights and contentions, he is ready

and willing to deposit entire amount, of which the complainant is alleged to have been cheated, in Court on such terms as may be deemed fit and proper and that he is ready to participate in the investigation, therefore, he be granted anticipatory bail.

6. Mr. Atul Nanda, learned Additional Solicitor General for the State of Punjab, argued that petitioner is guilty of concealing material facts, inasmuch as, English translation of the FIR led Along with the petition is not the correct translation, and material portions showing involvement of the petitioner have deliberately been either left out or wrongly translated to mislead the Court and the petition is liable to be dismissed on this ground alone. It is further submitted that in addition to the present case, there are 31 more complaints against the petitioner and his family members. The petitioner ought to have approached the Court of competent jurisdiction in Punjab, wherefrom non-bailable warrants have been issued against him, as has been done by his wife, who is staying with him. Learned counsel further submits that co-accused Shamsher Singh is in custody, passport of the complainant and other incriminating material, is yet to be recovered, therefore, custodial interrogation of the petitioner is required, and this petition is liable to be dismissed.

7. Learned counsel for the parties have cited several judgments in support of their respective submissions and it will be useful to refer following cases dealing with grant of anticipatory bail, in cases registered outside the territorial jurisdiction of the court where the petition is filed, and orders required to be passed in such cases.

8. In Capt. Satish Kumar Sharma v. Delhi Administration, 1991 JCC 42, a Division Bench of this Court, while considering the question regarding grant of anticipatory bail in Delhi in respect of the cross-cases registered at P.S. Munshi Ganj, U.P. observed:

"One need not mix up the jurisdiction relating to cognizance of an offence with that of granting of bails. Bails are against arrest and detention. Therefore, an appropriate Court within those jurisdiction the arrest takes place or is apprehended or is contemplated will also have jurisdiction to grant bail to the person concerned. If the court of session or the High Court has the jurisdiction to grant interim bail, then the power to grant full anticipatory bail will emanate from the same jurisdiction."

9. In State of Assam and Anr. v. Dr. Brojen Gogol and Ors., , the order granting bail passed by Bombay High Court in a case registered at State of Assam was challenged by the State in the Supreme Court. The Apex Court transferred the bail petition from Bombay and directed the Gauhati High Court to decide bail petitions and the issue regarding validity of the order by the Bombay High Court was kept open, observing "we do not think it necessary to decide whether the Bombay High Court has jurisdiction to entertain the applications filed by the respondents."

10. In this case allegations are of illegal human trafficking abroad by misleading innocent people, which is undisputedly a grave offence. The investigations are at the initial stages. Non-bailable

warrants against the petitioner have been issued. Some of the applications for anticipatory bail are pending before the concerned court. It is settled law that custodial interrogation is qualitatively more elicitation oriented than questioning the suspect having an order of pre-arrest bail as held by the Apex Court in State v. Anil Sharma, . In view of the same, it would be more appropriate for the regular court to deal with the matter on the appreciation of material placed before it.

11. However, taking into consideration, the petitioner's background more particularly the letter dated 2.8.2002 which prima facie shows possibility of some bad blood between the petitioner and his brother Shamsher Singh, who is in custody, cannot be ruled out. In the facts and circumstances of the case, I am persuaded to grant anticipatory bail to the petitioner for the limited duration of ten days, to enable him to seek appropriate orders from the regular courts. Accordingly, the petitioner, in the eventuality of his arrest is ordered to be released on bail for ten days from today, on his furnishing a personal bond in the sum of Rs. 5.0 lacs with one surety in the like amount to the satisfaction of SHO/Arresting Officer, subject to the condition that (i) he shall participate in the investigation on at Patiala on 27th October, 2003 at 11.00 a.m., (ii) shall not leave the country, without prior permission of the, trial court and would surrender his passport, if any, and (iii) shall keep the police informed as to the place of his stay.

12. Petition stands disposed of. Any observations made herein would not affect the merits of the case at any stage.